

25STCV11956 25STCV11956

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-16

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Case Number: 25STCV11956 Hearing Date: September 16, 2026 Dept: 512

HEARING

DATE: Weds., September 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Glassman

v. Roots, Inc. COMPL.

FILED: 04-24-25

CASE NUMBER: 25STCV11956

NOTICE:

OK

PROCEEDINGS: MOTION TO COMPEL DEPOSITION OF PERSON MOST KNOWLEDGEABLE

MOVING PARTY: Plaintiff Nina Glassman

RESP. PARTY: Defendant Roots, Inc.

MOTION TO COMPEL DEPOSITION

(CCP § 2025.450)

TENTATIVE RULING:

Plaintiff Nina Glassman's Motion to Compel the Deposition of the Person Most Knowledgeable or Qualified for Defendant is GRANTED. Defendant's PMK is to be produced within 60 days of this order on a mutually agreed upon date and time. The request for sanctions is

DENIED.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§
1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on September 2, 2026 ☐
Late ☐ None

REPLY: Filed
on September 9, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On April 24, 2025, Plaintiff Nina
Glassman ("Plaintiff") filed the instant action against Defendant Roots, Inc.
("Defendant") and Does 1-20.

On July 14, 2025, Defendant filed an
Answer.

On September 8, 2025, Defendant filed
an Amended Answer.

On August 18, 2026, Plaintiff filed
the instant Motion to Compel the Deposition of the Person Most Knowledgeable
("PMK") or Qualified for Defendant (the "Motion") and request for sanctions.

On September 2, 2026, Defendant filed

an Opposition.

On September 9, 2026, Plaintiff filed
a Reply.

II.

Legal Standard

Code of Civil Procedure section 2025.450, section (a)
provides:

If, after service of a deposition notice, a party to the
action or an officer, director, managing agent, or employee of a party, or a
person designated by an organization that is a party under Section 2025.230,
without having served a valid objection under Section 2025.410, fails to appear
for examination, or to proceed with it, or to produce for inspection any
document, electronically stored information, or tangible thing described in the
deposition notice, the party giving the notice may move for an order compelling
the deponent's attendance and testimony, and the production for inspection of
any document, electronically stored information, or tangible thing described in
the deposition notice.

(Code Civ. Proc., § 2025.450, subd. (a).)

Code of Civil Procedure section 2025.410 states, in
pertinent part: "(a) Any party served with a deposition notice that does
not comply with Article 2 (commencing with Section 2025.210) waives any error
or irregularity unless that party promptly serves a written objection
specifying that error or irregularity at least three calendar days prior to the
date for which the deposition is scheduled, on the party seeking to take the
deposition and any other attorney or party on whom the deposition notice was
served."

III.

Discussion

Plaintiff moves

to compel Defendant's PMK and provides evidence of the parties' communication
regarding the PMK depositions, and a notice of deposition for Defendant's PMK
set for 7/30/26 to which Defendant objected and did not appear. (Motion, Kopple

Decl., Exhs. A-F, Kopple Decl.) In the objection to the PMK deposition notice, Defendant's counsel state the deposition date does not work for counsel and requests the parties discuss alternative dates and scheduling of the PMK deposition telephonically. (See Motion, Kopple Decl., Exhs. A-B, D.) Plaintiff requests sanctions in conjunction with the Motion in the amount of \$4,623.41 against Defendant and defense counsel. (Notice of Motion.)

In Opposition,

Defendant criticizes Plaintiff's counsel's professionalism and states that, contrary to the Motion's claims, Defendant is cooperating with scheduling depositions. (Opp., pp. 1-4.) Further, Defendant states that the witnesses Plaintiff deposed in March 2026 "are essentially the same individuals who qualify as Persons Most Knowledgeable now. In March 2026, before current Defense counsel took over the case, Plaintiff deposed three relevant witnesses. Plaintiff deposed Diana Kang on March 12, 2026; Noah Warren on March 10, 2026, and Seth Blackburn on March 22, 2026. These witnesses have already testified to most, if not all, of the topics of examination in Plaintiff's notice of PMK deposition. Now, Plaintiff is claiming he needs three more depositions." (Opp., p. 5.) Defendant also contends that Plaintiff is using the additional depositions "as a second opportunity for a very extensive Request for Production of Documents." (See Opp., p. 5.) Additionally, the Opposition also provides that three depositions have been scheduled for September, but the deposition of Omar Elarabi needs rescheduling as defense counsel's office just learned that he suffers from a life-threatening medical condition. (See Opp., Rastegar Decl., p. 2.) Finally, Defendant contends there are no grounds for sanctions to be awarded against Defendant in this case as Defendant has acted in good faith and has been cooperative at "every step." (Opp., pp. 6-7.)

In Reply,

Plaintiff states Plaintiff has offered 38 dates for the deposition of Defendant's PMK, but Defendant has unreasonably rejected all the proposed dates. (Reply, pp. 1-2.) Plaintiff contends that Defendant is misusing discovery and states the PMK deponents were only previously deposed as percipient witnesses. (Reply, pp. 2-3.) Plaintiff states that during the percipient witness depositions, the deponents were not prepared to answer questions in conformance with PMK requirements. (Reply, p. 4.)

Here, the Court

finds Defendant timely objected to the noticed deposition of Defendant's PMK

scheduled for July 2026 with a valid objection. (See Code Civ. Proc., § 2025.450, subd. (a).) Further, the Court notes that the parties have been in active discussions regarding scheduling of Defendant's PMK depositions prior to and following the Motion being filed, and Defendant provides evidence that PMK depositions are scheduled for September and one of the deponents needs to reschedule due to a medical condition. (See Motion; Opp.; Reply.)

Based on the totality of the circumstances, since the deposition has not been completed, the Court GRANTS the motion and orders that Defendant's PMK be produced within the next 60 days. The Court reminds the parties to cooperate to schedule depositions at a mutually agreeable date and time. Considering that the opposing party has met and conferred to produce the PMK, the Court does not find that imposing sanctions is justified.

IV.

Conclusion & Order

Based on the foregoing, Plaintiff Nina Glassman's Motion to Compel the Deposition of the Person Most Knowledgeable or Qualified for Defendant is GRANTED.

Defendant's PMK is to be produced within 60 days of this order on a mutually agreed upon date and time. The request for sanctions is DENIED.

Moving party is ordered to give notice.